

MEMORANDUM TO THE FILE

Subj: USE OF OTHER THAN FULL AND OPEN COMPETITION FOR AN ACQUISITION UNDER THE SIMPLIFIED ACQUISITION THRESHOLD

I. BACKGROUND:

1. FAR 13.106-1(b)(1)(i) states for purchases not exceeding the simplified acquisition threshold, Contracting Officers may solicit from one source if the Contracting Officer determines that the circumstances of the contract action deem only one source reasonably available (e.g., urgency, exclusive licensing agreements, brand-name or industrial mobilization).
2. As required by FAR 13.106-3(b)(3)(i), this memorandum explains the absence of competition for this acquisition, as only one source will be solicited for this requirement (or for a portion of the requirement) and the requirement is not expected to exceed the simplified acquisition threshold.

II. DESCRIPTION OF ITEM OR SERVICE:

Parts from Sauer Compressors USA to maintainance Sauer Compressor brand compressors. Parts and description are listed below.

Part Number	Nomenclature	QTY	Required Delivery Date
056216	CYLINDER, 1ST STAGE	1	7/31/2025
037477	STUD, M12 x 140, DIN 939, 8.8	6	
040889	TWINKLE VALVE	1	
064420	PRESSURE WASHER, FLYWHEEL	1	
056264	PRESSURE WASHER	1	
000153	HHCS, M12X40, DIN 933, 8.8	1	
000216	HHCS, M20X60, DIN 933, 8.8	1	
032430	FITTING KEY	1	
	FREIGHT	1	

III. THE DETERMINATION FOR USE OF OTHER THAN FULL AND OPEN COMPETITION IS BASED ON THE FOLLOWING:**A. X ONLY ONE RESPONSIBLE SOURCE (select all that apply):**

1. RESTRICTIVE RIGHTS. The source has established proprietary rights, limited rights in data, patent rights, copyrights or secret processes in the item or service required.
2. X EXCLUSIVE LICENSING AGREEMENTS. The item or service is only available from the Original Equipment Manufacturer (OEM), or there is only one authorized distributor or technical representative for the OEM.

There are 2 Medium Pressure Air Compressors onboard each LCS-1 variant. Sauer Compressors USA is the Sole Source Vendor for the compressors and all parts are

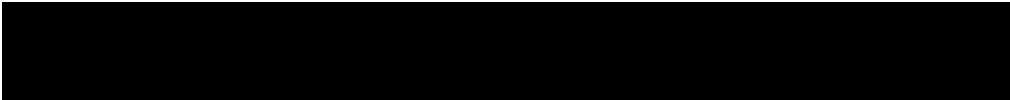
required in accordance with drawing “S6220-ER-MMC-010 Rev 5, Compressor, Medium Pressure, Air (580 PSI) 3-Stage, Air Cooled Model Number WP-121L, for LCS Class.”

3. OTHER REASONS.

- B. BRAND NAME.** Item required must be a brand name product, or feature of a product, particular to one manufacturer.
- C. UNUSUAL AND COMPELLING URGENCY.** The supplies or services are of such unusual and compelling urgency that the Government would be seriously injured unless the agency is permitted to limit the number of sources from which it solicits bids or proposals. Urgent requirements are supplies or services that will result in a work stoppage, or are mission critical and the routine processing time would result in injury to the Government. The determination that the procurement for the above item/service is an urgent and compelling requirement is based on the following:

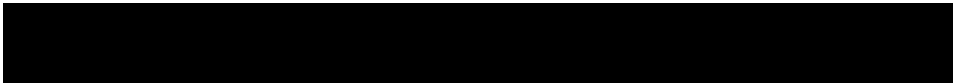
IV. CERTIFICATIONS/APPROVALS:

A. Technical / Requirements Certification: I certify that the facts and representation under my cognizance which are included in this justification are complete and accurate to the best of my knowledge and belief.



Signature Name (Printed) / Phone # Date

B. Certification/Approval.



28 Apr 2025

Contracting Officer Name (Printed) / Phone # Date

C. FLCJ Code 200 Approving Official.

Supervisory Contracting Officer Name (Printed) / Phone # Date